

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 26-04
ORLEANS INTERNATIONAL, INC. v. HAPAG LLOYD AG

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Orleans International, Inc. (“Orleans” or “Complainant”) and Respondent Hapag Lloyd AG (“Hapag” or “Respondent”) (Orleans, collectively with Hapag, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

I. Document Productions

1. The Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b) as of July 6, 2026. The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions) and 502.145 (i.e., no more than 50 written interrogatories), respectively.

2. Consistent with Paragraph 3 of the Presiding Officer’s March 23, 2026 Initial Order in this case, the Parties met on July 9, 2026, as part of a meet and confer process to discuss the preparation of a draft protective order concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case. The parties are also considering a draft protocol addressing electronically-stored information, determining appropriate custodians, data sources, and possible search terms to guide discovery in this case.

Pursuant to 46 C.F.R. § 502.64(a), the Parties have discussed plans, and emailed, to schedule a preliminary conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS") via a videoconference on Tuesday, July 14, 2026.

II. Proposed Briefing Schedule

3. Although the Parties have discussed methods by which the necessity of the production of documents in this matter may be reduced and will work cooperatively to agree on such efforts which may include, for example, stipulations, requests for admissions, etc., the Parties propose the below schedule, which provides for a discovery schedule in excess of 150 days due to the complexities involved and the volume of discovery in this matter. The parties are mindful of the 150-day time period set by 46 C.F.R. § 502.141(g); however, the parties anticipate that documentary discovery in this proceeding will be extensive, complicated, and challenging.

4. Among other things, there may be a significant number of depositions, possibly some involving overseas deponents. The Commission's regulations requiring that discovery be completed within 150 days of the service of a respondent's answer may be a reasonable time in a relatively straightforward case; however, it is not realistic for a case of this magnitude in which documentary discovery will involve a significant number of documents, depositions of as many as twenty witnesses per party, and Complainant's alleged damages of approximately \$ 1.162 million.

5. The parties acknowledge that prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, one which the deadlines for issuance of initial and final decisions are intended to achieve, and that scheduling orders are an important part of this process. However, the parties wish to emphasize that it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be

extended by administrative law judges and the Commission.¹ The same rationale should apply at this initial stage, when a discovery schedule is being established.

6. There are also policy considerations which favor allowing sufficient time for a full development of the evidentiary record before an agency. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (policy and responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of fairness between the parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission).

7. The parties believe that good cause has been demonstrated to modify the 150-day deadline provided for under 46 C.F.R. §502.141(g) and accordingly propose the following schedule:

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	July 21, 2026
Parties to serve objections and initial responses to initial RFPs	August 20, 2026
Parties to serve objections and initial responses to initial interrogatories	August 20, 2026
Submission of any unresolved disputes concerning initial RFPs and interrogatories and	September 19, 2026

¹ See Scheduling Order, *20230930-DK-BUTTERFLY-1, Inc. v. CMA CGM S.A.*, FMC Dkt. No. 25-25, Dkt. 14 (Nov.14, 2025); Scheduling Order, *20230930-DK-BUTTERFLY-1, Inc. f/k/a Bed Bath & Beyond Inc. v. Evergreen Line Joint Service Agreement (fmc#011982) Consisting of Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima Spa., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd.*, FMC Dkt. No. 24-12, Dkt. 23 (Aug. 16, 2024); Scheduling Order, *Access One Transport, Inc. v. CMA CGM S.A.*, FMC Dkt. No. 24-18, Dkt. 11 (June 7, 2024).

EVENT	PROPOSED DEADLINE
objections and responses thereto (after counsel confer directly)	
Substantial completion of productions of documents and ESI in response to initial RFPs	October 16, 2026
Complete depositions of fact witnesses	November 30, 2026
Last day to serve interrogatories, requests for admission, and RFPs	December 23, 2026
Disclosure of initial expert reports, if any	December 23, 2026
Disclosure of rebuttal expert reports, if any	January 20, 2027
Complete expert depositions	February 11, 2027
Close of discovery	February 11, 2027
Complainant's initial brief, proposed findings of fact, and appendix	March 16, 2027
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	April 13, 2027
Complainant's reply and responses to proposed findings of fact	May 11, 2027

Dated: July 13, 2026

Respectfully submitted,

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